MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement (the "**Agreement**") is made on 6 April 2026 (the "**Effective Date**").

BETWEEN

(1) **KOPI KITA SDN. BHD.** (Company No. SAMPLE-MY-1000), a company incorporated in Malaysia with its registered office at No. 1, Jalan Contoh Kopi, 50450 Kuala Lumpur ("**Kopi Kita**"); and

(2) **KEDAI SISTEM TECH SDN. BHD.** (Company No. SAMPLE-MY-7101), a company incorporated in Malaysia with its registered office at Unit 12-3, Menara Contoh Digital, Jalan Contoh Teknologi 2, 47800 Petaling Jaya, Selangor ("**Kedai Sistem**").

Each a "**Party**" and together the "**Parties**".

BACKGROUND

(A) Kopi Kita operates twelve cafe outlets and a central roastery in the Klang Valley and uses a point-of-sale system at each outlet.

(B) Kedai Sistem develops and supports point-of-sale software and payment integrations for food and beverage businesses.

(C) The Parties wish to discuss whether Kedai Sistem's software can be integrated with Kopi Kita's loyalty, inventory and accounting systems (the "**Purpose**"). In the course of those discussions each Party expects to disclose confidential information to the other, and each Party has agreed to protect that information on the terms of this Agreement.

1. DEFINITIONS

1.1 In this Agreement:

"**Confidential Information**" means all information disclosed by or on behalf of a Party (the "**Discloser**") to the other Party (the "**Recipient**") in connection with the Purpose, in any form, that is marked confidential or that a reasonable person would understand to be confidential from its nature or the circumstances of disclosure. It includes technical specifications, application programming interface documentation, source code, system architecture, pricing, sales data, customer and supplier lists, recipes, business plans and the existence and content of the discussions.

"**Representatives**" means a Party's directors, employees, professional advisers and approved sub-contractors who need to know the Confidential Information for the Purpose.

"**Business Day**" means a day other than a Saturday, Sunday or public holiday in Kuala Lumpur.

2. OBLIGATIONS OF THE RECIPIENT

2.1 The Recipient shall:

(a) keep the Discloser's Confidential Information confidential and use it only for the Purpose;

(b) not disclose it to anyone other than its Representatives;

(c) ensure that each Representative is told of its confidential nature and is bound by

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obligations of confidence no less protective than this Agreement;

(d) protect it with at least the same degree of care it uses for its own confidential information, and never less than reasonable care; and

(e) notify the Discloser in writing without delay on becoming aware of any unauthorised use or disclosure.

2.2 The Recipient is responsible for any breach of this Agreement by its Representatives.

2.3 These obligations apply equally to both Parties, each in its capacity as Recipient of the other's Confidential Information.

3. EXCLUSIONS

3.1 The obligations in Clause 2 do not apply to information that the Recipient can show:

(a) is or becomes publicly available other than through a breach of this Agreement;

(b) was lawfully known to the Recipient before it was disclosed by the Discloser;

(c) was lawfully received by the Recipient from a third party who was not under a duty of confidence in respect of it;

(d) was independently developed by the Recipient without use of or reference to the Discloser's Confidential Information; or

(e) is required to be disclosed by law, by a court order or by a regulator with authority over the Recipient, provided that the Recipient (where lawful) gives the Discloser prompt written notice, discloses only what is legally required and cooperates with any effort by the Discloser to limit the disclosure.

4. NO LICENCE AND NO OBLIGATION TO PROCEED

4.1 All Confidential Information remains the property of the Discloser. No licence or other right in any intellectual property is granted by this Agreement, except the limited right to use the Confidential Information for the Purpose.

4.2 Nothing in this Agreement obliges either Party to disclose any particular information, to enter into any further agreement, or to continue discussions. Each Party may end the discussions at any time by written notice.

4.3 All Confidential Information is provided "as is". Neither Party gives any warranty as to its accuracy or completeness, save as may be agreed in a later written agreement.

5. TERM

5.1 This Agreement begins on the Effective Date and, unless ended earlier by agreement, continues until 5 April 2028.

5.2 The obligations in Clause 2 apply to Confidential Information disclosed during that period and continue for two (2) years from the date of each disclosure, and in any event no later than 5 April 2030.

5.3 Clause 2 continues to apply to any source code or customer personal data for so long as the Recipient holds it, even after the periods above.

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6. RETURN AND DESTRUCTION

6.1 Within fourteen (14) days of a written request from the Discloser, or of the end of the discussions, the Recipient shall return or securely destroy all Confidential Information in its possession and, if requested, confirm in writing that it has done so.

6.2 The Recipient may keep copies that it is required to retain by law or under its bona fide document retention policy, and copies held in routine electronic back-ups that are not readily accessible. Those copies remain subject to this Agreement for as long as they are kept.

7. PERSONAL DATA

7.1 The Parties do not intend to exchange personal data about customers or staff during the discussions. If any personal data is disclosed, the Recipient shall process it only for the Purpose and in accordance with the Personal Data Protection Act 2010 of Malaysia.

8. NO RESTRICTION ON BUSINESS

8.1 Nothing in this Agreement prevents either Party from carrying on its business, from dealing with any other person or from developing products or services of its own, provided that it does so without using the other Party's Confidential Information.

8.2 Nothing in this Agreement restricts either Party from employing or engaging any person, or from competing with the other Party.

9. REMEDIES

9.1 Each Party acknowledges that damages alone may not be an adequate remedy for a breach of this Agreement and that the Discloser may apply to the court for an injunction or other equitable relief, in addition to any other remedy available to it, on the basis of the usual principles applied by the court.

10. GOVERNING LAW AND DISPUTES

10.1 This Agreement is governed by the laws of Malaysia, including the Contracts Act 1950.

10.2 The Parties shall first try to settle any dispute by good-faith discussions between senior managers within thirty (30) days of written notice of the dispute.

10.3 If the dispute is not settled in that time, the courts of Kuala Lumpur have exclusive jurisdiction.

11. GENERAL

11.1 This Agreement is the entire agreement of the Parties on its subject matter and replaces all earlier discussions about confidentiality for the Purpose.

11.2 It may be changed only in writing signed by both Parties.

11.3 Neither Party may assign or transfer its rights or obligations under this Agreement without the other's prior written consent.

11.4 If any provision is held to be invalid or unenforceable, the remaining provisions continue in force.

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11.5 A failure or delay in exercising a right is not a waiver of it.

11.6 Notices must be in writing and delivered by hand, by courier or by email to the address of the receiving Party set out above, marked for the attention of its Managing Director (in the case of Kopi Kita, Ms. Lim Contoh). A notice sent by email is treated as received on the next Business Day.

11.7 This Agreement may be signed in counterparts, including by electronic signature, each of which is an original.

SIGNATURES

SIGNED for and on behalf of **KOPI KITA SDN. BHD.**

Signature: _____

Name: Ms. Lim Contoh Title: Managing Director

Date: _____

SIGNED for and on behalf of **KEDAI SISTEM TECH SDN. BHD.**

Signature: _____

Name: Mr. Faizal Contoh Title: Director

Date: _____

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